

What is a protection order?

It is an order issued by the Barangay or the Court to prevent further acts of violence against a woman or her child and to grant other necessary relief, under RA 9262. There are three (3) kinds of protection order:

1. **Barangay Protection Order (BPO)**
2. **Temporary Protection Order (TPO)**
3. **Permanent Protection Order (PPO)**

Who may apply for protection order?

Anyone of the following may apply for protection order:

- a. the offended party
- b. parents, or guardians of the offended party
- c. ascendants, descendants or collateral relatives, within the fourth civil degree or consanguinity or affinity
- d. officers or social workers of the DSWD or LGUs
- e. police officers, preferably those in-charge of women and children's desk
- f. punong barangay or barangay kagawad
- g. lawyers, counselors, therapists, health care providers of the petitioner
- h. at least two (2) concerned citizens of the city or municipality where VAWC happened and who have personal knowledge of the offense committed

References:

1. RA 9262 or the Anti-Violence Against Women and their Children Act Primer by SALIGAN
2. A guide to Anti-Violence Against Women and their Children (RA 9262) Philippine Information Agency and the NCRFW, 2004
3. END VAW: A Complete Reference Book on the Anti-Violence Against Women and their Children Act of 2004 (RA 9262). Published by the Support Service Institute of Women and the Democratic Socialist Women in the Philippines, 2006
4. RA 9262 or the Anti-Violence Against Women and their Children Act of 2004, Implementing Rules and Regulations
5. Q & A Implementing Rules and Regulations RA 9262 or the Anti-Violence Against Women and their Children Act of 2004, A Handbook for the Philippine National Police
6. Barangay Protection Order RA 9262 A Primer, Department of the Interior and Local Government, National Barangay Operations Office, 2004

DON'T BE AFRAID TO SEEK HELP

Barangay VAW Desk in your Barangay Hall

Provincial/City/Municipal Social Welfare and Development Office of Local Government Units

DSWD Ugnayan Pag-asa Crisis Intervention Center
Hotlines: (02) 8734-8639 / (02) 8734-8654 / (02) 8734-8626 to 27

DSWD Community-Based Services Section (CBSS)
Hotline: (02) 8733-0010 to 18 loc. 116

Philippine National Police (PNP)
Hotline: 117 / 911

Women Children Protection Center
Main Office: (02) 8532-6690 / 7410-3213 / 7723-0401 local 5260, 5360, 5361
Visayas: 0917-7085157 / (032) 410-8483
Mindanao: 0917-1806037
Aleng Pulis: 0919-7777377 / 09667255961

National Bureau of Investigation (NBI)
Anti-Violence Against Women and Children Division (VAWCD)
Hotline: (02) 8525-6028

DOJ-Public Attorney's Office (PAO)
(02) 8929-9436 local 106, 107 or 159 (Local "0" for operator)
Mobile: 0939-3233665
DOJ Action Center: (02) 8521-2930 / 8523-8481 loc. 403

UP PGH Women's Desk
Tel. no.: (02) 8524-2990 / 8353-0667 / 8542-1512 / 8554-8400 local 2536

Women's Care Center Inc.
St. Scholastica's Archives-Museum, 884 Pablo Ocampo Street, Manila
Mobile: 0920-9677852 / 0917-8250320

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Republic Act 9262

Anti-Violence Against Women and
their Children (VAWC) Act of 2004

Republic Act 9262: The Anti-Violence Against Women and their Children Act of 2004

Seeks to address the prevalence of violence against women and their children (VAWC) by their intimate partners like:

- Husband or ex-husband
- Live-in-partner or former live-in-partner
- Boyfriend/girlfriend or ex-boyfriend/ex-girlfriend
- Dating partner of former dating partner

Classifies VAWC as a public crime.

What is VAWC under RA 9262?

It refers to any act or series of acts committed by any person against a woman who is his wife, former wife, or against a woman with whom the person has or had sexual or dating relationship, or with whom he has a common child, or against her child whether legitimate or illegitimate, within or without the family abode, which result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse including threats of such acts, battery, assault, coercion, harassment or arbitrary deprivation of liberty.

Children-are those below 18 years of age or older but are incapable of taking care of themselves (as stated in RA 7610).It includes biological children of the victim and other children under her care.

Dating Relationship- is one which has a romantic involvement. It means that a relationship existed between a woman and a partner who is abusive or has previously abused her, whether or not the relationship was formal.

Sexual Relations- refer to a single sexual act which may or may not result in the bearing of a common child.

VAWC includes, but is not limited to the following acts:

- 1. PHYSICAL VIOLENCE**- refers to acts that include bodily or physical harm;
- 2. SEXUAL VIOLENCE**- refers to an act which is sexual in nature, committed against a woman or her child. It includes, but is not limited to:

2.a Rape, sexual harassment, acts of lasciviousness, treating a woman or her child as a sex object, making demeaning and sexually suggestive remarks, physically attacking the sexual parts of the victim's body, forcing the victim to watch obscene publications and indecent shows or forcing the woman or her child to do indecent acts and/or make films thereof, forcing the wife and mistress/lover to live in the conjugal home or sleep together in the same room with the abuser;

2.b Acts causing or attempting to cause the victim to engage in any sexual activity by force, threat of force, physical or other harm or threat of physical or other harm or coercion; and

2.c Prostituting the woman or her child.

3. PSYCHOLOGICAL VIOLENCE - refers to acts or omissions causing or likely to cause mental or emotional suffering of the victim such as but not limited to intimidation, harassment, stalking, damage to property, public ridicule or humiliation, repeated verbal abuse and marital infidelity. It includes causing or allowing the victim to witness the physical, sexual, or psychological abuse of a member of the family to which the victim belongs, or to witness pornography in any form or to witness abusive injury to pets or unlawful or unwanted deprivation of the right to custody and/or visitation of common children.

4. ECONOMIC ABUSE - refers to acts that make or attempt to make a woman financially dependent. This includes but is not limited to the following:

Withdrawal of financial support or preventing the victim from engaging in any legitimate profession, occupation, business or activity, deprivation of financial resources and the right to conjugal community or property owned in common, destroying household property or controlling the victim's own money or properties.

Who gets protected under the Law?

The law recognizes the unequal relations between a man and a woman in an abusive relationship where the woman is usually at a disadvantage. Thus the law protects the **woman and her children**.

The **victim-child** who is a minor (legitimate and illegitimate), and a person aged 18 years and beyond who doesn't have the ability to decide for herself/himself because of an emotional, physical and mental illness can make full use of the law.

Any child under the care of a woman is also protected under the law.

What can women and children do under RA 9262?

Under the law, the offended party may file a criminal action, or apply for Protection Order either as an independent action or as an incident in civil or criminal action and other remedies.

Is VAWC committed by men alone?

Women can also be liable under the law. These are the lesbian partners/ girlfriends or former partners of the victim with whom she has or had a sexual or dating relationship.

What if the male spouse/partner complains about abuses committed by his wife/partner?

He may file a complaint or case under the Revised Penal Code.

Who may file a complaint under RA 9262?

Any citizen having personal knowledge of the circumstances involving the commission of the crime may file a complaint because violence against women and their children is considered a PUBLIC crime.

Where should cases for VAWC be filed?

Cases may be filed in the Regional Trial Court designated as FAMILY COURT of the place where the crime was committed. These courts have original and exclusive jurisdiction over these cases.

What are the penalties for committing VAWC?

Offenders proven in court to be guilty of the crime shall be penalized with:

- imprisonment ranging from 1 month and 1 day to 20 years
- payment of P100,000 to P300,000 in damages
- mandatory psychological counseling or psychiatric treatment

What is Battered Woman Syndrome (BWS)?

RA 9262 acknowledges that women who have retaliated against their partner or who commit violence as a form of self-defense may have suffered from **Battered Woman Syndrome** (BWS).

BWS refers to a pattern of psychological and behavioral symptoms found in battered women as a result of a long history of abuse

Any victim who suffers from BWS should be diagnosed by a Psychiatric expert or a clinical psychologist. This will also help the victim in obtaining a just decision in her case.

The law does not allow the offender to have custody of minor children. Their care is shall entrusted to the woman even if she is found to have BWS.